

(36)

Tentative Ruling

Re: **Thomas, Jr. v. Alfareh, et al.**
Superior Court Case No. 25CECG03984

Hearing Date: September 3, 2026 (Dept. 503)

Motion: by Plaintiff for Leave to File First Amended Complaint

Tentative Ruling:

To grant. (Code Civ. Proc., § 473.)

Plaintiff is required to file the First Amended Complaint within 10 days from the service of the clerk of the minute order. New allegations/language must be set in **boldface** type.

Explanation:

Plaintiff seeks leave to amend to join Saad DMD, Inc. as a defendant, and to add supporting facts relating to this party.

Plaintiff has met the formalities required of a motion to amend the complaint, and has given due notice to all appearing defendants. Motions for leave to amend the pleadings are directed to the sound discretion of the judge. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . ." (Code Civ. Proc., § 473, subd. (a)(1); see also Code Civ. Proc., § 576.) Judicial policy favors resolution of cases on the merits, and thus the court's discretion as to allowing amendments will usually be exercised in favor of permitting amendments. This policy is so strong, that denial of a request to amend is rarely justified, particularly where "the motion to amend is timely made and the granting of the motion will not prejudice the opposing party." (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.)

Even so, the court has discretion to deny leave to amend where the proposed amendment fails to state a valid cause of action (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230), or the party seeking the amendment has been dilatory and the delay has prejudiced the opposing party. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) No opposition was filed, so no facts were presented to warrant denial of plaintiff's motion for leave to amend. Accordingly, the motion is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 9/2/2026.
(Judge's initials) (Date)